

Contract Compliance Analysis Report

Contract: sample-contract.pdf

Regulation Analyzed: li_2204.pdf

Analysis Date: 2025-04-27 14:33:25

Executive Summary

Total potential compliance issues identified: 10

Issues by Severity:

- High: 9
- Medium: 1

Detailed Compliance Issues

1. [High] Missing Obligation

Issue: The contract clause does not mention the requirement for a local content plan, which should include an Employment and Training Sub-Plan, a Research and Development Sub-Plan, a Technology Transfer Sub-Plan, a Legal Services Sub-Plan, and a Financial Services Sub-Plan as per the regulation.

Regulation Ref: Sub-regulations (3) of the Regulation Excerpt

2. [High] Missing Obligation

Issue: The contract clause does not specify the process for giving preference to indigenous Ghanaian companies in the acquisition of goods and services, as required by the regulation.

Regulation Ref: Regulation 11 of the Regulation Excerpt

3. [High] Missing Obligation

Issue: The contract clause does not specify the basis of bid evaluation, which should not be solely based on the principle of the lowest bidder as per the regulation.

Regulation Ref: Regulation 12 of the Regulation Excerpt

4. [High] Missing Obligation

Issue: The contract clause does not mention the requirement to inform the Commission in writing of each proposed contract or purchase order related to petroleum activities which is to be sole sourced or where it is to be sourced by a competitive bidding procedure that is estimated to be in excess of the cedi equivalent of one hundred thousand United States Dollars.

Regulation Ref: Regulation 13 of the Regulation Excerpt

5. [High] Missing Obligation

Issue: The contract clause does not mention the requirement to submit the following documents for the approval of the Commission: advertisements relating to expression of interest; requests for proposals; prequalification criteria; technical bid documents; technical evaluation criteria; and any other information requested by the Commission to enable the Commission determine that the local content requirements have been complied with.

Regulation Ref: Regulation 13(2) of the Regulation Excerpt

6. [Medium] Non-compliant Clause

Issue: The contract clause specifies quarterly reporting, while the regulation excerpt mandates an annual Local Content Performance Report.

Regulation Ref: Regulation 34

7. [High] Missing Obligation

Issue: The clause omits the requirement to maintain a bank account with an indigenous Ghanaian bank.

Regulation Ref: Regulation 33

8. [High] Missing Obligation

Issue: The contract clause does not specify that the contractor, subcontractor, licensee or other allied entity shall allow an employee or a designated agent of the Commission access to their facilities, documents and information as the Commission may require for the purposes of assessment and verification of the report.

Regulation Ref: Regulation 35(2)

9. [High] Missing Obligation

Issue: The contract clause does not specify that the contractor, subcontractor, licensee or other allied entity shall ensure that its partners, contractors, subcontractors and allied entity are contractually bound to report local content information to the contractor, subcontractor, licensee or other allied entity and, if requested, to the Commission.

Regulation Ref: Regulation 36(1)

10. [High] Missing Obligation

Issue: The contract clause does not specify that the contractor, subcontractor, licensee or other allied entity shall allow an agent or official designated by the Commission access to the records of the contractor, subcontractor, licensee or other allied entity for purposes of assessment and verification of the local content information reported to the contractor, subcontractor, licensee or other allied entity or the Commission.

Regulation Ref: Regulation 36(2)